

25VECV01713 25VECV01713

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-06

Motion: DEFENDANT GENERAL MOTORS LLC'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

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Case Number: 25VECV01713 Hearing Date: August 6, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

BASSAM KALLO, an individual,

Plaintiff,

vs.

GENERAL

MOTORS, LLC; and Does 1 to 10, inclusive,

Defendants.

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CASE

NO: 25VECV01713

[TENTATIVE]

ORDER RE: DEFENDANT GENERAL MOTORS LLC'S DEMURRER
TO PLAINTIFF'S SECOND AMENDED COMPLAINT

Dept.

I

DATE:

AUGUST 7, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: MARCH 27, 2025

TRIAL

DATE: FEBRUARY 22, 2027

I.

BACKGROUND

On March 27, 2025, Plaintiff Bassam Kallo ("Plaintiff") filed a complaint against Defendants General Motors, LLC ("Defendant") and Does 1 to 10 alleging five causes of action: (1) violation of Cal. Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); (3) violation of Civ. Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement through concealment. Plaintiff alleges that, on or about July 7, 2017, Plaintiff entered into a warranty contract with Defendant regarding a 2017 Chevrolet Camaro (the "Vehicle"), which was allegedly revealed to have defects. (Complaint at ¶¶ 6 and 11.)

On July 16, 2025, Plaintiff filed his first amended complaint ("FAC").

On June 22, 2026, Plaintiff filed his second amended complaint ("SAC") alleging three causes of action: (1) violation of Civ. Code § 1793.2(d); (2) violation of Civ. Code § 1793.2(b); and (3) violation of Civ. Code § 1793.2(a)(3).

On July 6, 2026, Defendant filed the instant demurrer to Plaintiff's SAC.

On July 27, 2026, Plaintiff filed his opposition.

On July 30, 2026, Defendant filed its reply.

II.

LEGAL

STANDARD

Demurrer

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal.

Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (*Blank*, supra, 39 Cal.3d at 318.)

The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

CCP §

430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).)

Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When a

demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985)

39 Cal.3d 311, 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 [“Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.”].)

III.

DISCUSSION

Meet and Confer Requirement

On June 16, 2026, defense counsel met and conferred via telephone with Plaintiff’s counsel regarding the instant demurrer. (Allison Decl. ¶ 2.) The parties were unable to reach an agreement. (Ibid.) Accordingly, Defendant satisfies the meet and confer requirement of CCP § 430.41(a).

Demurrer

Defendant demurs to Plaintiff’s entire SAC on the grounds that it is time-barred by the applicable statute of limitation found in CCP § 871.21. (See Demurrer at p. 1.)

CCP § 871.21 provides, in pertinent part, that an action for restitution or replacement of motor vehicle or civil penalties “shall be commenced within one year after the expiration of the applicable express warranty” or “[n]otwithstanding subdivision (a) . . . shall not be brought no later than six years after the date of original delivery of the motor vehicle.” (Civ. Code § 871.21(a) and (b).) Additionally, “[t]he time periods prescribed in subdivisions (a) and (b) shall be tolled . . . [a]s provided by tolling requirements prescribed in the [Song-Beverly Consumer Warranty Act].” (Civ. Code § 871.21(c)(1).)

In opposition, Plaintiff argues that CCP §

871.21 does not apply to the instant action because retrospective application of new procedural statutes to eliminate potential claims is a violation of due process. (Opposition at 2:19-3:13.) Plaintiff cites *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122-123, holding that “where the change in remedy, as for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.” (Ibid. [citing *Rosefield Packing Co.*, supra, 4 Cal.2d at 122-123].) Plaintiff argues that “[h]ere, Defendant seeks to have this court apply [CCP] section 871.21 retroactively, and to require Plaintiff to have filed their case by July 2023.” (Ibid.)

In reply, Defendant argues that both the statutory language and legislative history of CCP § 871.21 demonstrates that its statute of limitations applies to any action filed after January 1, 2025. (Reply at 1:14-2:9.) However, Defendant fails to cite any specific legislative history to support this argument.

California law establishes a strong presumption that statutes operate prospectively only. (*Quarry v. Doe* (2012) 53 Cal.4th 945, 955.) Courts must consider “the nature and extent of the change in the law and the degree of connection between the operation of the new rule and a relevant past event” guided by “familiar considerations of fair notice, reasonable reliance, and settled expectations.” (Id. at 955-956.) Here, Plaintiff entered into the warranty at issue on July 7, 2017. (See SAC at ¶ 6.) Accordingly, if the statute of limitations found in CCP § 871.21 applied, Plaintiff would have had to bring his claim by July 7, 2023, well before CCP § 871.21 was enacted. Therefore, Defendant improperly asks the Court to apply CCP § 871.21 in a manner that violates “familiar considerations of fair notice, reasonable reliance, and settled expectations.” (*Quarry*, supra, 53 Cal.4th at 955-956.) As Defendant notes, if application of a new statute of limitations and/or statute of repose “raise[s] substantial concerns about the effects of the new rule on the general administration of justice, or would unfairly undermine the reasonable reliance of parties on the previously existing state of the law,” a court can refuse to apply it. (Reply at 6:1-13 [citing *Newman v. Emerson Radio Corp.* (1989) 48 Cal.3d 973, 983.]) Here, Plaintiff should not be bound to a statutory deadline of July 2023 when the

applicable deadline did not exist until January 2025. Additionally, a statute “will not be applied retroactively unless such intention clearly appears in the language of the statute itself.” (Krusesky v. Baugh (1982) 138 Cal.App.3d 562, 566.) Defendant’s argument that Plaintiff’s claims are time-barred fails.

IV.

CONCLUSION

Defendant’s
demurrer is OVERRULED.

Defendant
to file an answer within 20 days of this order.

Moving
party to give notice.

Dated August
____, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior
Court